

Authority for Personal Data
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The Minister for Medical Care
P.O. Box 20350
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Date

June 17, 2024

Our reference

2024-12419

Your letter dated

April 18, 2024

Your reference

3809774-1064705-PZO

Subject

Implementation Regulation Warning Register Healthcare Fraud

Dear Ms. Dijkstra,

In your letter dated April 18, 2024, the Authority for Personal Data (AP) was consulted pursuant to the provisions of Article 36, fourth paragraph, of the General Data Protection Regulation (GDPR), regarding the draft regulation containing further rules for the implementation of the Act on Promoting Cooperation and Lawful Care and the Decree on Promoting Cooperation and Lawful Care concerning the implementation of Article 2.1 of the Act and Article 2.3 of the Decree (Implementation Regulation Warning Register Healthcare Fraud; hereinafter: the draft).

The AP has a comment on the draft.

Scope of the draft

This ministerial regulation contains the protocol¹ pertaining to the Warning Register for Healthcare Fraud introduced in the Act on Promoting Cooperation and Lawful Care (Wbsrz)², and an elaboration of the security requirements that apply to the data exchange via this Warning Register³.

1 Delegation basis: Article 2.1, first paragraph, Wbsrz. The Wbsrz provides for the mandatory provision of designated (personal) data by general administrative regulation in the event that a municipality or health insurer has a justified belief, in accordance with the protocol, that there is fraud in healthcare and that the aforementioned data are necessary for combating that fraud. The AP advised on the legislative proposal on March 28, 2019 (z2018-14940). The data to be provided are: administrative characteristics of a legal entity, identifying data of a natural person, email address, and a telephone number of the providing municipality or the providing health insurer, and whether the legal entity or natural person to whom the provision relates has been informed about this provision (Article 2.1, second paragraph, Bbsrz).

2 State Gazette 2023, 285; not yet in force.

3 Delegation basis: Article 2.3, first paragraph, Bbsrz. The AP advised on the draft general administrative regulation on November 26, 2020 (z2020-18903). Article 2 of the draft states that the security of the data processed by municipalities and health insurers under Article 2.1 Wbsrz complies with the most recently published version of the Baseline Information Security Government (BIO; Circular of the

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Legislative Assessment

Article 2.2, second paragraph, Decree on Promoting Cooperation and Lawful Care (Bbsrz)⁴ lists the mandatory elements of the protocol. One of these elements is “the legal basis on which the providing municipality or the providing health insurer processes the data.”⁵

However, the protocol lacks the designation of the applicable legal basis.

It must be assumed that at least Article 2.1 Wbsrz is the basis for the provision to the Warning Register, but the basis for any other processing by the municipality and health insurer in this context and the relationship with the bases in Article 6, first paragraph, GDPR (the c- or e-basis) are not mentioned in the protocol.

The AP concludes that the protocol does not fully meet the requirements set by Article 2.2, second paragraph, Bbsrz, making an adjustment of the protocol in this regard desirable.

Workload AP

The AP notes that the draft is not expected to require additional effort from the AP.

Publication

This legislative assessment will be published on the AP's website within two weeks.

Yours sincerely,
Authority for Personal Data,

Aleid Wolfsen
Chairman

⁴ State Gazette 2024, 85; not yet in force.

⁵ Article 2.2, second paragraph, under f, Bbsrz.

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-Appendix

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Assessment Framework AP

The AP examines whether the draft regarding the processing of personal data is in accordance with the Charter of Fundamental Rights of the European Union (EU), the GDPR (Regulation 2016/679), or the Police and Justice Directive (Directive 2016/680), the general legal principles of the EU, and other relevant law, whereby it must be sufficiently demonstrated that the principle of proportionality is met, by:

1. the draft being suitable for achieving the pursued objective of general interest or the protection of the rights and freedoms of others (suitability);
2. the objective cannot reasonably be achieved as effectively by other means that are less intrusive to the fundamental rights of the data subjects (subsidiarity);
3. the interference is not disproportionate to that objective, which particularly implies a weighing of the importance of the objective and the severity of the interference (proportionality);
4. the draft is sufficiently clear and precise regarding the scope and is predictable in its application (legal certainty);
5. the draft sufficiently indicates under what circumstances and conditions personal data may be processed, thereby ensuring that the interference is limited to what is strictly necessary (substantive

and procedural safeguards); and

6. the draft is binding under national law (bindingness under national law).

The AP pays particular attention to the rights of data subjects and the conformity of the draft with Article 6, paragraphs 1 and 3, and Article 9 of the GDPR (Regulation 2016/679), or Articles 8 and 10 of the Police and Justice Directive (Directive 2016/680) and with the principles established in Article 5 of the GDPR or Article 4 of the Directive. This implies, among other things, that:

(a) processing must be lawful, fair, and transparent with respect to the data subject;

(b) personal data may only be collected for specified, explicitly defined, and legitimate purposes; and

(c) processing must be adequate, relevant, and limited to what is necessary for the purposes.

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